

1.

CASE #	CASE NAME	HEARING NAME
CVPS2400896	THE LINKS AT DESERT FALLS HOMEOWNERS ASSOCIATION, A NONPROFIT MUTUAL BENEFIT CORPORATION VS GLASS	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling: Cross-defendant The Links at Desert Falls Homeowners Association's motion for judgment on the pleadings is DENIED.

A motion for judgment on the pleadings is properly granted in a cross-defendant's favor if "[t]he [cross-complaint] does not state facts sufficient to constitute a cause of action against that [cross-defendant]." (CCP 438(c)(1)(B)(ii).) In ruling on the motion, the court is confined to the face of the pleadings and matters required to be judicially noticed. (CCP 438(d).) Notice may also be taken "of the truth of the content of court records . . . when the existence of the record itself . . . bind[s] a party for purposes of res judicata or collateral estoppel." (*Columbia Casualty Co. v. Northwestern Nat. Ins. Co.* (1991) 231 Cal.App.3d 457, 473.)

In her answer, cross-complainant Alva Glass asserts "selective enforcement," "discrimination," "harassment," "defamation," "infringement fines," "inaccurate accounting," and "retaliation" as affirmative defenses to the complaint filed by cross-defendant. The court determined cross-complainant failed to produce evidence supporting these defenses and granted cross-defendant's motion for summary judgment. Based on this, cross-defendant claims the causes of action asserted in the cross-complaint are now barred by collateral estoppel or res judicata, entitling it to judgment on the pleadings.

But collateral estoppel bars the relitigation of an issue only if "the issue is identical to an issue decided in a prior proceeding." (*Bostick v. Flex Equipment Co., Inc.* (2007) 147 Cal.App.4th 80, 96.) The cross-complaint asserts causes of action for housing discrimination under federal and state law, Unruh Act violations, intentional infliction of emotional distress, and disability discrimination. Due to the sparse nature of cross-complainant's answer and the inexact, lay verbiage used therein, it is pure speculation that " "identical factual allegations" " underlie the causes of action raised in the complaint and cross-complaint. (*Ibid.*) The cross-complaint is thus not barred by collateral estoppel (*ibid.*) or res judicata (see *Levy v. Cohen* (1977) 19 Cal.3d 165, 171 [res judicata requires identity of issues]).

2.

CASE #	CASE NAME	HEARING NAME
CVPS2400896	THE LINKS AT DESERT FALLS HOMEOWNERS ASSOCIATION, A NONPROFIT MUTUAL BENEFIT CORPORATION VS GLASS	MOTION FOR ATTORNEY FEES

Tentative Ruling: Plaintiff The Links at Desert Falls Homeowners Association's unopposed motion for attorney fees is GRANTED.

The prevailing party in an action to enforce governing documents "shall be awarded reasonable attorney[] fees and costs." (CC 5975(c).) Plaintiff's governing documents also state that an owner against whom an enforcement act is successfully prosecuted shall be liable for attorney fees.

(See CC&Rs, art. V, §§ 1 & 14.) Any such fee award must be based on a reasonable number of hours worked and a reasonable hourly rate for the local community. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

Here, plaintiff successfully prevailed on the motion for summary judgment it prosecuted against defendant Alva Glass. It now seeks \$17,890.00 in fees based on 57.9 hours of its attorney's work at hourly rates of \$275.00 to \$375.00, plus \$1,842.46 in costs. The court deems both the number of hours expended on this matter and the rates charged to be reasonable. Defendant is accordingly ordered to pay plaintiff \$19,732.46 in attorney fees and costs. Payment to be made within 15 days of this order.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2400896	DESERT FALLS VILLAS MASTER ASSOCIATION, A NONPROFIT MUTUAL BENEFIT CORPORATION VS GLASS	MOTION FOR ATTORNEY FEES

Tentative Ruling: Plaintiff Desert Falls Villas Master Association's unopposed motion for attorney fees is GRANTED.

The prevailing party in an action to enforce governing documents "shall be awarded reasonable attorney[] fees and costs." (CC 5975(c).) Plaintiff's governing documents also state that an owner against whom an enforcement act is successfully prosecuted shall be liable for attorney fees. (See CC&Rs, art. V, §§ 1 & 14.) Any such fee award must be based on a reasonable number of hours worked and a reasonable hourly rate for the local community. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

Here, plaintiff successfully prevailed on the motion for summary judgment it prosecuted against defendant Alva Glass. It now seeks \$14,689.50 in fees based on 55.2 hours of its attorney's work at hourly rates of \$260.00 to \$275.00, plus \$1,602.20 in costs. The court deems both the number of hours expended on this matter and the rates charged to be reasonable. Defendant is accordingly ordered to pay plaintiff \$16,291.70 in attorney fees and costs. Payment to be made within 15 days of this order.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2506056	MIDLAND CREDIT MANAGEMENT INC. VS CORONA	MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

Tentative Ruling: Defendant Jessica Corona's motion to set aside default judgment is DENIED.

Defendant contends the court should set aside the default judgment against her because she failed to answer the complaint due to "mistake, inadvertence, surprise, or excusable neglect." (CCP 473(b).) Specifically, she claims she did not file an answer because she was waiting to do so until plaintiff Midland Credit Management Inc. responded to her request for validation and documentation of her debt. But plaintiff responded to defendant's request in a letter dated 9/23/2025. The court thus cannot find defendant's failure to answer the complaint was due to the mistake, inadvertence, surprise, or excusable neglect she claims.